IN THE HIGH COURT OF ANDHRA PRADESH : AMARAVATI

HON'BLE MR. JUSTICE ARUP KUMAR GOSWAMI, CHIEF JUSTICE

&

HON'BLE MR. JUSTICE NINALA JAYASURYA

WRIT PETITION No. 12078 of 2021

(Taken up through video conferencing)

Vasupalli Guru Murthy
S/o. Raju, aged 28 years,
Resident of House No.9-43-10A,
Appala Swamy Street,
Mahantipuram, Vijayawada-520 001. .. Petitioner

Versus

The State of Andhra Pradesh,
Rep. by its Principal Secretary,
Department of Home,
Secretariat, Velagapudi, Amaravathi,
Guntur District and others. .. Respondents

Counsel for the Petitioner : Mr. Banka Nageswara Rao

Counsel for respondent Nos.1 to 4 : Mr. Y.N.Vivekananda, Government Pleader

Counsel for respondent Nos.5 & 6 : Mr. S.Bala Mohan Ranga

ORAL ORDER

Dt: 24.07.2021

(per Arup Kumar Goswami, CJ)

Heard Mr. Banka Nageswara Rao, learned counsel for the petitioner.

2. Also heard Mr. Y.N.Vivekananda, learned Government Pleader attached to the office of learned Additional Advocate General-II appearing for respondent Nos.1 to 4.

3. The petitioner filed the present writ petition seeking issuance of writ in the nature of habeas corpus, for production of minor daughter, namely, Vasupalli Manjula Satya Sri (aged 4 years).

4. It is pleaded that the petitioner was married to Sai Divya, who is the daughter of respondent Nos.6 and 7, on 21.03.2016, despite opposition from respondent Nos.6 & 7. It is stated that the respondent No.6 started living separately with respondent No.5. During marital life of the petitioner and Sai Divya, a baby girl was born on 07.04.2017, named, Vasupalli Manjula Satya Sri and the respondent Nos.6 and 7 did not provide any assistance either at the time of delivery or subsequently. On 31.01.2021, Ms.Sai Divya committed suicide and the respondent No.6 made a complaint in that regard and, accordingly, Crime No.70 of 2021 of II Town Police Station, Vijayawada City, was registered for the offences punishable under Sections 498A and 306 of the Indian Penal Code, 1860. The petitioner was arrested on 31.01.2021. It is pleaded that while he was in police custody, respondent Nos.5 and 6 kidnapped his minor daughter from his parents and also took away all the documents belonging to his wife and child. It is further stated that under Section 6 of the Hindu Minority and Guardianship Act, 1956, he is the natural guardian of Satya Sri as she is four years of age.

5. Counter-affidavit is filed by respondent Nos.5 and 6 stating that the marriage between respondent Nos.6 and 7 came to be dissolved by a decree of divorce and, thereafter, the respondent No.6 married respondent No.5 as per the Hindu marriage customs and tradition. It is pleaded that the petitioner used to harass Sai Divya physically and mentally suspecting her character and despite trying to settle the issues amicably, the petitioner did not pay any heed. It is further pleaded that during her life time Sai Divya also gave a complaint against the petitioner before the Women police, Labbipet, Vijayawada in the month of July 2019, who, after providing counselling, settled the issue. However, after some time, the petitioner continued to cause mental and physical

harassment to her and as a result, Ms.Sai Divya committed suicide by hanging on 30.01.2021. It is pleaded that the respondent No.6 has filed petition under Sections 29 to 33 of the Guardian and Wards Act, 1890, before the Family Court-cum-IV Additional District and Sessions Court, Vijayawada, vide online filing number GWOP.No.153377, on 10.07.2021, praying for appointment of respondent No.6 as the guardian of Satya Sri. While denying the allegation of kidnapping, it is stated that being grandmother, after the death of her daughter, she is looking after Satya Sri.

6. Since an application to appoint the respondent No.6 as a guardian of minor girl-Satya Sri is pending and as presently, Satya Sri is with the grandmother, we are not inclined to entertain this petition for writ of habeas corpus.

7. Accordingly, the Writ Petition is disposed of reserving liberty to the petitioner to contest the proceedings initiated by respondent No.6, and to seek remedy as may be available in law. We make it clear that we have not expressed any opinion on the merits of the case of either of the parties. No costs. Pending miscellaneous applications, if any, shall stand closed.

ARUP KUMAR GOSWAMI, CJ **NINALA JAYASURYA, J**

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HON'BLE MR. JUSTICE ARUP KUMAR GOSWAMI, CHIEF JUSTICE

&

HON'BLE MR. JUSTICE NINALA JAYASURYA

WRIT PETITION No.12078 of 2021
(per Arup Kumar Goswami, CJ)

Dt: 24.07.2021

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